

VCU308372 De Leon, Elizabeth vs. Visalia Citrus Packing Group Inc.

County: tulare

Division: Civil Law and Motion

Department: 2

Hearing date: 2026-09-22

Motion: Motion for Final Approval of Class Action and PAGA Settlement

Source URL: <https://www.tulare.courts.ca.gov/general-information/tentative-rulings>

Source SHA-256: c44e8d405d54dc79b7cfc177cbf61c59004de028b573b139e17e7a0720dc7909

Re: De Leon, Elizabeth vs. Visalia Citrus Packing Group Inc.

Case No.: VCU308372

Date: September 22, 2026

Time: 8:30 A.M.

Dept. 2-The Honorable Bret D. Hillman

Motion: Motion for Final Approval of Class Action and PAGA Settlement

Tentative Ruling: To grant the motion as modified herein; to set the hearing as to distribution of the settlement fund for April 6, 2027, 8:30 am. Dept. 2.

Facts and Analysis

Plaintiff's motion for final approval of class action and PAGA settlement, attorneys' fees, costs, enhancement award, LWDA payment and class certification for settlement purposes came on for hearing on September 22, 2026. The Court finds and rules as follows:

On August 28, 2026, the settlement administrator Phoenix Settlement Administrators, through its Case Manager, filed a declaration detailing the following events.

On May 28, 2026, the administrator received a mailing list of 53 potential class members from Defendant's counsel with names, contact information, social security numbers and relevant employment information.

On June 11, 2026, after the administrator processed the names through the National Change of Address Database and updated the list with any updated addresses located, the administrator sent class notice by mail to 53 members. Zero (0) notices were returned.

Class members had sixty (60) days, until August 10, 2026 to submit objections, disputes and/or requests for exclusions. Zero (0) requests for exclusion and zero (0) valid objections have been received from class members. Therefore, all 53 Class Members or 100% of the Class will participate in the settlement.

The court presumes the settlement is fair and reasonable given (a) that it was reached through arms-length bargaining at mediation, (b) that there was sufficient time for investigation and discovery since commencement of litigation (c) class counsel have particularized experience with the claims at issue in the case, and (d) there appear to be no disputes or objections. (*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1802.)

A net settlement amount of \$138,787.43 is available to pay to the class members in accordance with the terms of settlement. The highest class portion to be paid is approximately \$6,396.90, the lowest class portion to be paid is approximately \$292.43, and the average class portion to be paid is approximately \$2,960.85.

The Court believes basic information about the nature and magnitude of the claims in question and the basis for concluding that the consideration being paid for the release of those claims represents a reasonable compromise under the circumstances, in accordance with *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 133. This case involved extensive informal discovery and investigation of disputed claims, including review and analysis by Plaintiff's expert. The settlement avoids significant risks and delay that would result from further litigation of the case, which would include, amongst other matters, certification proceedings, trial, and the possibility of further delay and cost resulting from appeals.

Class counsel has provided an updated declaration in support of the requests for attorney fees representing 33.3% of the gross settlement fund of \$285,000 or \$92,400.

The Court notes 97 hours were indicated as incurred at the preliminary approval motion and that the Court adjusted the rates to \$950 to \$350 per hour. The Court also awarded 1.5 times the adjusted base lodestar and therefore previously approved \$72,075 in fees.

Counsel indicates 110 hours incurred, which appears reasonable to the Court. The Court also notes that most of the work done in that case was billed by three attorneys with less than five years' experience. The rates approved here are consistent with the rates charged by far more experienced attorneys locally.

However, counsel again asserts the hourly rates that the Court did not previously approve at the motion for preliminary approval. The Court notes that these rates are already higher than what is typically "...prevailing in the community for similar work." (*PLCM Group Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The Court, therefore, adjusts the hourly rates as follows:

Name

Stated Hourly Rate

Approved Hourly Rate

Hours

Total

Joshua D. Boxer

\$1,150

\$950

14.3

\$13,585

Sara Tosdal

\$925

\$700

2.6

\$1,820

Clare Moran

\$650

\$450

43.3

\$19,485

Joyce P. Lee

\$500

\$350

21.3

\$7,455

Matthew D. Scammahorn

\$500

\$350

29.1

\$5,705

Adjusted Base Lodestar:

\$52,530

Therefore, to award the \$92,400 in fees request, the Court would need to apply a multiplier of 1.76. As indicated previously, the Court has reviewed the declarations of counsel in support of what is now an additional .26 multiplier, but, in its discretion, rules that the additional .5 awarded adequately takes into account the quality of the representation, the novelty and complexity of the issues, the results obtained, and the contingent risk presented. (See *In re Vitamin Cases* (2003) 110 Cal.App.4th 1041, 1052 quoting *Thayer v. Wells Fargo Bank* (2001) 92 Cal.App.4th 819, 833) Despite any agreement by the parties to the contrary, the Court has an independent responsibility to review the attorney fee provision of the settlement agreement and award an amount that it determines to be reasonable. (*Garabedian v. Los Angeles Cellular Telephone Co.* (2004) 118 Cal.App.4th 123, 128.)

Therefore, the Court will preliminarily approve 1.5 times the adjusted lodestar of \$52,520, or \$78,795.

Counsel has additionally provided sufficient cost information indicating actual costs incurred in the amount of \$36,417.57. (Declaration of Boxer ¶45)

The Court believes the requested attorney fees, as adjusted, and costs appear reasonable under the circumstances. Additionally, counsel has provided a sufficient declaration to demonstrate adequate previous experience with class actions to further support the reasonableness of the award.

The settlement administrator has provided, in the declaration describing the work it has performed on the case, a value of services totaling \$6,000. The Court believes the amount requested as compensation for the administrator appears reasonable.

The settlement agreement designates distribution of unclaimed settlement proceeds to California Controller's Office Unclaimed Property Division, with an identification of the Participating Class Member to whom the funds belong, in accordance with Code of Civil Procedure section 384.

The Court previously approved a representative payment of \$5,000 and finds that the requested enhancement payment is appropriate under the circumstances.

Finally, the Court confirms its conditional certification of the settlement class. The Court finds no significant events have occurred that would cause it to change its prior determination that the settlement class met all requirements under Code of Civil Procedure section 382 for certification for settlement purposes at the time it granted Plaintiff's motion for preliminary approval.

On review of the declarations and pleadings submitted, the Court finds, given the established presumption that the settlement is fair and reasonable under the circumstances of this case, and, particularly, given the absence of any objection or opposition following the class notice, that the settlement is fair and reasonable and that the motion for final approval should be, and is hereby, granted.

Therefore, the following deductions from the gross settlement of \$285,000 are approved as follows:

Approved Court Approved Attorney Fees:

\$78,795.00

Approved Incurred Attorney Costs:

\$36,417.57

Approved Enhancement Payment to Plaintiff :

\$5,000.00

Approved Settlement Administrator Costs

\$6,000.00

Approved PAGA Payment (LWDA and Aggrieved Employees)

\$20,000.00

Approved Net Settlement Amount

\$138,787.43

Therefore, the Court sets the hearing as to distribution of the settlement fund for April 6, 2027, 8:30 am. Dept. 2.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.